

TENTATIVE RULING

Case: **Stewart v. The Regents**
 Case No. CV2024-2139

Hearing Date: **September 10, 2026** **Department Thirteen** **9:00 a.m.**

Defendant James Wood, DVM's motion for summary judgment:

Defendant James Wood, DVM's request for judicial notice is **GRANTED IN PART**. (Evid. Code, §§ 452, 453.) While the Court takes judicial notice of Exhibits B, C, and E, defendant has not shown that the Court may take judicial notice of Exhibits D and F. (See Evid. Code, § 452, subd. (d).)

Plaintiff Ashley Stewart's objections to defendants' separate statement of undisputed material facts are **OVERRULED**. (Code Civ. Proc., § 437c, subd. (f)(1); see also Cal. Rules of Court, rule 3.1350.)

Plaintiff's objection as to defendants' evidence no. 5 is **OVERRULED**. The Court declines to rule on all remaining objections because the evidence objected to is not relevant to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)

Defendant's objections to plaintiff's evidence nos. 1 through 36 are **OVERRULED**. The Court declines to rule on all remaining objections because the evidence objected to is not relevant to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)

Defendant's motion for summary adjudication as to plaintiff's fourth cause of action for negligence is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) "In any medical malpractice action, the plaintiff must establish: (1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence." (*Hanson v. Grode* (1999) 76 Cal.App.4th 601, 602, quotation marks, brackets, and citation omitted.) While defendant challenges the breach of standard of care and causation elements, there are triable issues of material fact as to these elements, given the competing expert declarations. (*Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 523; *Munro v. Regents of University of California* (1989) 215 Cal.App.3d 977, 984–985; *Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 970; UMF 11-12, 20, & 25.)

Defendant's motion for summary adjudication as to plaintiff's fifth cause of action for conversion is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) "Conversion is the wrongful exercise of dominion over the property of another. The elements of a conversion claim are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages." (*Burlesci v. Petersen* (1998) 68 Cal.App.4th 1062, 1066; see also *Enter. Leasing Corp. v. Shugart Corp.* (1991) 231 Cal.App.3d 737, 747.) Defendant has failed to satisfy its initial burden to show that cause of action has no merit. (Code Civ. Proc., § 437c, subd. (p)(2).) Specifically, defendant has not shown that his actions fell within plaintiff's authorization. (*Duke v. Superior Court* (2017) 18 Cal.App.5th 490, 506 ["If a defendant is authorized to make a specific use of a plaintiff's

property, use in excess of that authorized may subject the defendant to liability for conversion...”], citation and quotation marks omitted.)

Defendant’s motion for summary adjudication as to plaintiff’s sixth cause of action for fraudulent concealment is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) “The elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248, citation and quotation marks omitted.) Defendant has failed to show that this cause of action has no merit, as alleged in the SAC, and therefore, defendant has not satisfied its initial burden. (See *Howard v. Omni Hotels Management Corp.* (2012) 203 Cal.App.4th 403, 421 [“Generally, motions for summary judgment “are limited to the claims framed by the pleadings”]; SAC, ¶¶ 108-111.)

Defendant’s motion for summary adjudication as to plaintiff’s request for punitive damages is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) First, as to Civil Code section 3294, plaintiff alleges that defendant “texted to Plaintiff’s phone photos of Fig’s dissected heart, intestines, and body without any warning or explanation.” (SAC, ¶ 72.) Defendant fails to establish that this cannot form the basis for punitive damages. (See, e.g., Civ. Code, § 3294, subd. (c)(1).) Second, as to Civil Code section 3340, defendant does not show that a party can obtain summary adjudication on a request for exemplary damages under section 3340. (See Code Civ. Proc., § 437c, subd. (f)(1).)

Accordingly, defendant’s motion for summary judgment is **DENIED**. (Code Civ. Proc., § 437c, subds. (c), (p)(2).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

The Regents’ motion for summary judgment:

Defendant The Regents of the University of California’s request for judicial notice is **GRANTED IN PART**. (Evid. Code, §§ 452, 453.) While the Court takes judicial notice of Exhibits B, C, and E, defendant has not shown that the Court may take judicial notice of Exhibits D and F. (See Evid. Code, § 452, subd. (d).)

Plaintiff Ashley Stewart’s objections to defendants’ separate statement of undisputed material facts are **OVERRULED**. (Code Civ. Proc., § 437c, subd. (f)(1); see also Cal. Rules of Court, rule 3.1350.)

Plaintiff’s objection as to defendants’ evidence no. 5 is **OVERRULED**. The Court declines to rule on all remaining objections because the evidence objected to is not relevant to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)

Defendant's objections to plaintiff's evidence nos. 1 through 36 are **OVERRULED**. The Court declines to rule on all remaining objections because the evidence objected to is not relevant to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)

Defendant's motion for summary adjudication as to plaintiff's second cause of action for breach of bailment is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) Defendant has failed to satisfy its initial burden to show that cause of action has no merit. (Code Civ. Proc., § 437c, subd. (p)(2); *Windeler v. Scheers Jewelers* (1970) 8 Cal.App.3d 844, 850; *Gebert v. Yank* (1985) 172 Cal.App.3d 544, 551; SAC, ¶¶ 90-93.)

Defendant's motion for summary adjudication as to plaintiff's third cause of action for negligence is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) "In any medical malpractice action, the plaintiff must establish: (1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence." (*Hanson, supra*, Cal.App.4th at p. 602, quotation marks, brackets, and citation omitted.) While defendant challenges the breach of standard of care and causation elements, there are triable issues of material fact as to these elements, given the competing expert declarations. (*Kelley, supra*, 66 Cal.App.4th at p. 523; *Munro, supra*, 215 Cal.App.3d at pp. 984-985; *Lattimore, supra*, 239 Cal.App.4th at p. 970; UMF 47-48, 56, & 61.)

Accordingly, defendant's motion for summary judgment is **DENIED**. (Code Civ. Proc., § 437c, subds. (c), (p)(2).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.